

CHAPTER-TWO

2.Understnding State & Government

2.1. Definition and Characteristics of Society

➤ The term society is derived from a Latin word socius.

➤ **Socius means :-**

✓ association, togetherness, living in group, group life.

2. 1.1. Elements of Society

- i. Common Geographical area/defined territory
- ii. society is usually a relatively large grouping of people in terms of size.
- iii. Have Common Culture: language, identity,
- iv. Have the feeling of identity and belongingness.
- v. A society is **autonomous** and **independent**

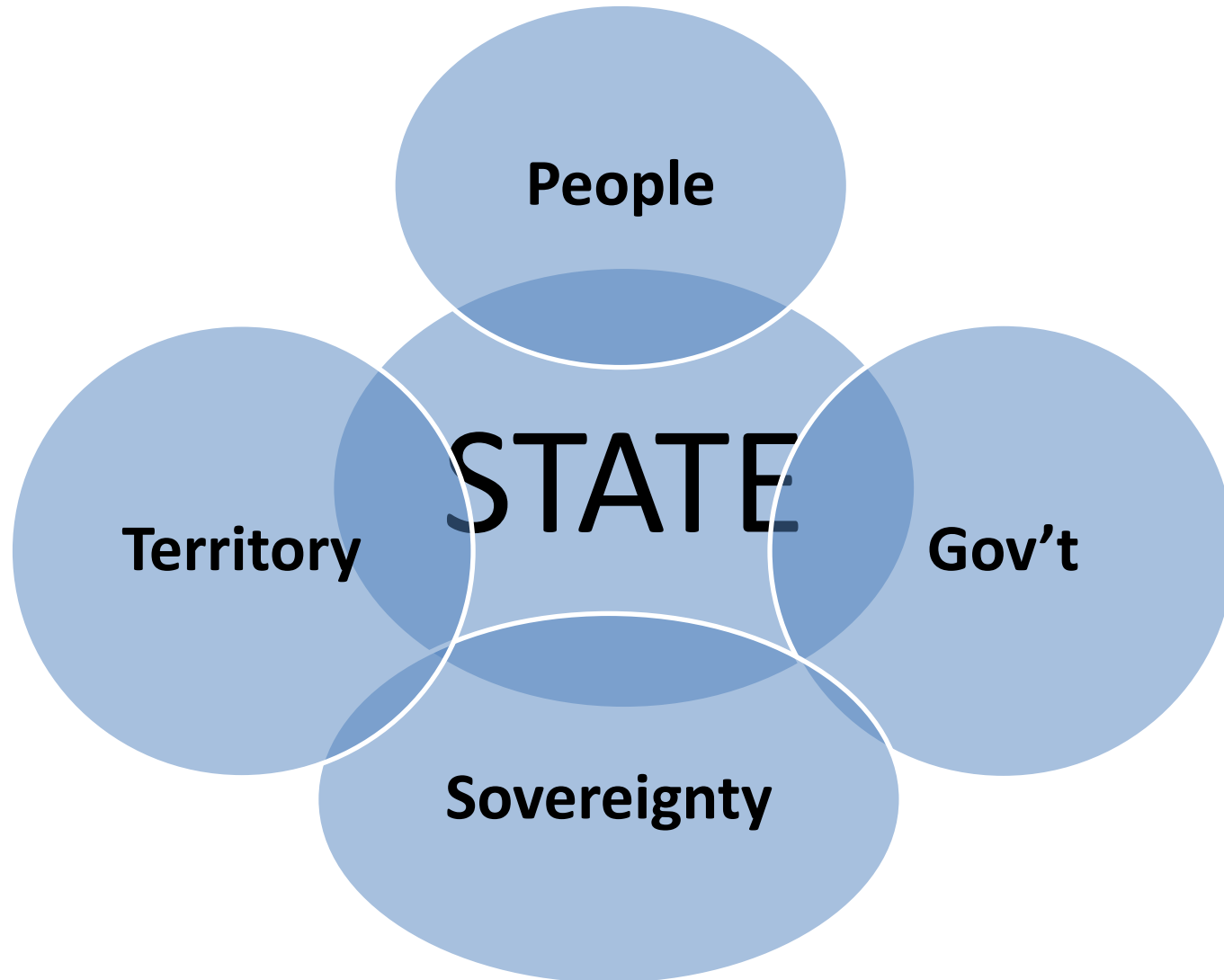
2.2. Defining and Understanding of State

2.2.1. Conceptual Discourses

- There is no commonly agreed definition regarding the concept of the state.
- The State is a political organization.
- The state is rooted in society.
- When society politically organized, the make state.

Major Elements of State

❖ **Pillars** of the modern state are



i. People

- ✓ State is not create without peoples.
- ✓ The question is how much people constitute state?
- ✓ Size (It cannot be fixed)
- ✓ There is **no standard** with regard to the number of people in a state.

ii. Sovereignty

- ✓ It is supreme power/authority of the State to **make any decision** regarding with **internal** and **external** matters of the country.
- ✓ It is **internal supremacy** and **external independence**.
- ✓ It is **free to make its own foreign policy** decision without any external pressure.

iii. Territory

- ✓ There can be **no state without a fixed territory**.
- ✓ People need territory to live and organize themselves **socially and politically**.
- ✓ Territory is necessary for **citizenship**.
- ✓ Territory of the state includes **land, water and air-space**.
- ✓ The **size, location and shape** of a state **do not put impact** for its survival, yet it may have an **impact on its development and security**.

iv. Government

- ✓ It's the **political organization** of the state.
- ✓ It is the **machinery or the arm**/brain of the state.
- ✓ The **state cannot exist** without government.
- ✓ It is the **working agency of state** that responsible for the overall administrative affairs of the country.

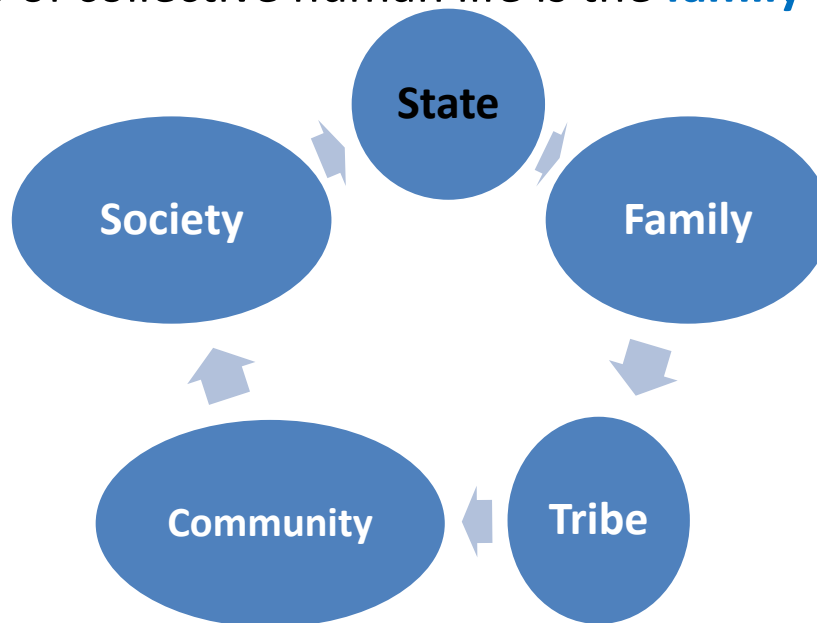
v. Recognition:-

- ✓ It is **not** compulsory or necessary element.
- ✓ It is **supplementary** element of the state.
- ✓ An external acceptance of a newly emerging independent state by other states in the world is called **International recognition.**
- ✓ Recognition is a **political act**; to mean it depends on the interest of a recognizing state.
- ✓ It is very important to be recognized, but it **cannot determine the legal existence of a given state** in this real world.
- ✓ State **can exist** without getting international recognition.

2.2.2. Origin and Historical Development of State

A. Genetic or Natural or Evolutionary Theory

- ✓ State gradually and slowly evolved out of earlier forms of settled human communities, such as the **family**, the **clan** and **tribe**.
- ✓ Aristotle says “state is the product of the natural or gradual expansion of the family”.
- ✓ The **first** group of collective human life is the **family** or the household, the **last** is the **state**.



B. Theory of Divine Origin

- ✓ The State, its advocates maintain was **created by God and governed by his deputy or vicegerent.**
- ✓ The ruler was a divinely appointed agent and he was **responsible for his action to God alone.**
- ✓ some are born to rule while others are born to be ruled
- ✓ Power is Hereditary,
- ✓ As ruler was the deputy of God, **obedience to him was held to be a religious duty** and Resistance to lawful king is sin.

C. Force Theory

- State is created by the use of physical force.
- Through the process of **conquest, subjugation and coercion** of the weak by the strong.
- ✓ The state is born out of force.
- ✓ **Exist** in force and **die** in the **absence of force**.
- ✓ Military strength or physical strength has paramount importance for consolidation of state.

D. The Social Contract Theory

- ✓ It postulates a state of nature as the original conditions making and a social contract.
- ✓ State is the results of consent (will) of the people.
- ✓ The main purpose of such state is to protect and safeguard the **inalienable rights of the people such as the right to life, liberty, and property.**
- ✓ This theory argued that state is an artificial creation based on the contract or agreement the people at large.

E. The Marxist View

- ✓ State evolved gradually and steadily as a result of disappearance of primitive communities.
- ✓ The formation of social classes is associated with emergence of private property.
- ✓ State originated from the split of society into social classes.
- ✓ The formation of socio-Economic paved the way for foundation of state.

2.3. The Differences between Society and State

No	State	Society
1.	State came into existence <u>after the origin of the society.</u>	Society <u>is prior to the state.</u>
2	The state exists for the society as a means for its end	Society is an end by itself
3	An artificial institution -it was made when it was needed	A natural and an innate institution
4	State is <u>not broader</u> and narrower. Or State has fixed territory.	Society is both broader and narrower than the State. Or Society has no fixed territory.
5.	State is a political organization.	Society is a social organization.

2.4. State structure

- ❖ There are many states in the world.
- States can also be differentiated by the **structures** of government they have.
- There are **three state structure** in the world.
 1. **Unitary state Structure**
 2. **Federal state structure**
 3. **Confederal state structure**
- ❖ The criteria to categorized these:-
 - ✓ **Power division/ degree of power shared/** between the **central government** and **regional government**.

Major characteristics of Unitary State Structure

- ❖ Centralization of power
- ✓ **Indivisible** of power
- ✓ The central government has full legal right to **over-rule** Local governments.
- ✓ The right to make **decisions on all political matters** rests with the national government
- ✓ There is **no self rule** and **shared rule**
- ✓ **All administrative policies** and principles originate only from the center.

Major characteristics Federal State Structure

- ❖ Decentralization of power
- ✓ **Devolution** of power
- ✓ **Both the center and regions have certain independent spheres of authority to make decisions independently of each other.**
- ✓ There is **self rule and shared rule**.
- ✓ It is agreement of two (or more) levels of government /political entity.
- ✓ There are **formal division** of powers between two levels of government.

Major characteristics Unitary State structure

- ✓ Allocated powers by the central government
- ✓ There is **one** constitution
- ✓ There is only one legislator
- ✓ The regional or local units are highly **subordinated or subservient** to only the will of the national government.
- ✓ The local governments are created by the center, their existence is **depend the interests of the central** government and they are **subordinate** to the national Government

Major characteristics Federal State Structure

- ✓ Power of federating units and federal are clearly stated by **constitution.**
- ✓ There is **two** constitutions
- ✓ Bicameral legislature
- ✓ “Neither the **central nor regional** governments are **subordinate** to each other, but rather the two levels of government are **coordinate and equal.**”
- ✓ Each has some genuine autonomy, neither level can unilaterally abolish the other.

2.4.2. Advantages and Disadvantages of unitary state Structure

Advantages of Unitary State Structure

- ✓ Uniformity of decisions
- ✓ Uniformity of laws, rules and policies
- ✓ Power organization in unitarism is relatively simple
- ✓ Conflict of jurisdiction is easily avoidable or manageable
- ✓ A unitary state structure is suited for as small country with a homogeneous population. i.e. uni-lingual, uni-national state

Disadvantages of Unitary State Structure

- ✓ Effective administration may be difficult;
- ✓ Doesn't encourage participation at the grass root levels;
- ✓ Not effective in managing cultural diversities;
- ✓ Inter-regional competition may not be encouraged;
- ✓ Due to centralization of power at the center there may be misuse of power...

2.4.2. Advantages and Disadvantages of Federal state Structure

Advantages of Federal State Structure

- ✓ Its ability to manage diversity, Flexibility
- ✓ Recognizes local interests and differences
- ✓ Prevents secession (usually)
- ✓ Check federal government power
- ✓ Managing large country, Innovation
- ✓ Promotes competition among jurisdictions
- ✓ Citizen participation
- ✓ Local autonomy

Disadvantages of Federal State Structure

- ✓ Conflict of jurisdiction
- ✓ Policies are not uniform
- ✓ Protects powerful local interests
- ✓ Lack of Accountability
- ✓ harmful spillover effects
- ✓ It can make for weak parties
- ✓ Can lead to a parochial Congress
- ✓ Weakened nationalism

2.4.4. Division of Power in Federal Structure

- 1. Exclusive power**
- 2. Concurrent power**
- 3. Residual power**

1. Exclusive power		2. Concurrent (shared)
<u>Federal Government (Art51)</u>	<u>Regional Government (Art52)</u>	
✓ It shall establish and administer national defense and a federal police force ✓ Administer the National Bank, print and borrow money, ✓ It formulate and implement foreign policy ✓ It administrate and regulate of air, rail, waterways and sea transport and <u>major roads linking two or more States</u>, as well as for postal and telecommunication services ✓ It negotiate and ratify international agreements	✓ To enact and execute the <u>state constitution</u> and other laws ✓ To formulate and execute economic, social and development policies, strategies and plans of the State ✓ To establish and administer a state police force ✓ To enact and enforce laws on the State civil service and their condition of work; like educational; health, pure water supply, road construction, expansion of electric service etc.	✓ To levy and collect tax ✓ Protect the security of the state ✓ Cultural development ✓ Sports development ✓ Environmental protection ✓ Tourism

3. Residual power: the power that is left to the regional governments, except India.

3.5. Confederalism

- ✓ Voluntary association of independent states.
- ✓ States are sovereign
- ✓ Central government is weak but state governments are strong.
- ✓ The loose alliances of countries.
- ✓ Withdraw from the confederation at any time is possible.
- ✓ It established for common purpose.
- ✓ Confederalism is more observable in regional, continental and global organizations.

2. 6. Government

2. 6.1 Definition and Functions

❖ Government is:-

- ✓ Institution through which determining, formulating, and implementing the policies of the state.
- ✓ Government is an organization people set up to protect the community and make rules.

Functions of Government:-

1. Maintenance of law and order in society
2. Protection the security of citizens and territory from internal and external threats.
3. Providing and Distribution of Resources Or Good and Services to the citizens of the state.

2. 6. 2 Organs: refers to branches of government:-

A. Legislature

B. Executive

C. Judiciary

❖ What is the functions of Legislative, Executive and Judiciary?

Legislative	Executive	Judiciary
✓ Formulate law ✓ Propose constitutional amendments, ratify treaties ✓ Control tax (revenues) or Pass the budget ✓ Act as check and balance on the other branches of government ✓ Hear public grievances.	✓ Enforce & administer the law ✓ Collect taxes , provide social services ✓ Control of military forces and Conduct of foreign relations. ✓ Maintaining peace and order; defending country from enemy	✓ Interpret law ✓ It <u>detached from politics</u> and act in <u>neutral manner.</u> ✓ They are a guardian, defender and safeguard for individual rights protection. i.e. It is expected to render impartial decisions.

2. 6. 3 Systems and Types of government

- ❖ Government may classify democratic and the non-democratic or unlimited or non-constitutional governments.
- ❖ Based on how to come to power and how to rule the society types of government divided in to Democratic and undemocratic one.

Democratic	Undemocratic
Presidential	Authoritarian,
Parliamentary	Totalitarian,
Hybrid	Dictatorship, Military, Tyranny
	Aristocracy,
	Monarchy,
	oligarchy
	Feudalist

❖ Based on the relationship existing between the legislative and executive branches Democratic types of government classify in to three (In principle Judiciary should be neutral in all systems).

✓ **Parliamentary,**

✓ **Presidential and**

✓ **Hybrid.**

❖ **The relationship between Presidential and Parliamentary Systems**

Based on	Presidential	Parliamentary
Relationship between Executive and Legislative	Separation of power	Fusion of Power
Head of State /Government	Same Person	Different Persons
Term of Office	Fixed (Predictable)	Less Predicatable
Cabinet	From outside Legislature	Either from Legislators or outside of them
Executive's Question Period	Irregular (primarily responsible to the people)	Regular (primarily responsible to parliament)
Government Coalitions	Less Likely	More Likely
Election of Chief-Executive	Normally Direct	Normally Indirect
Legislation	More Gridlock, More Independence from Party	Easier to pass Legislation, Party control more disciplined

C. Semi-presidential/Hybrid:

- ✓ This is an alternation between presidential and parliamentary phases which solves both **executive-legislative dead lock of presidential** and **legislature's uncritical support of government in parliamentarianism.**
- ✓ Separation of power in hybrid system is **not as clear as presidential** and **not as fused as parliamentary.**

2.8. The Difference between State and Government

State	Government
State is wide	Government is smaller
Abstract	Practical & concrete organization
State continue to exist	Temporary/ it changes frequently
The state is a composition of all citizen	All of the citizens are not members of government
Membership to the state is compulsory	Membership to the government is an <u>optional</u> matter
Are not of various kinds	Various kinds